

25STCV03788 25STCV03788

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-07

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Case Number: 25STCV03788 Hearing Date: August 7, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Benjamin Zuniga

;

Plaintiff,

vs.

Volkswagen Group of

America, INC.

;

Defendant.

Case No.:

25STCV03788

Hearing Date:

August 7, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Attorney's Fees, costs, and expenses

MOVING PARTY: Plaintiff Benjamin Zuniga

RESPONDING

PARTY: Defendant Volkswagen Group of America, Inc.

Motion for

Attorney's Fees, Costs, and Expenses

The court considered the moving
and opposition papers filed in connection with this motion.

DISCUSSION

Plaintiff

Benjamin Zuniga ("Plaintiff") moves the court for an order awarding him attorney's fees, costs, and expenses against defendant Volkswagen Group of America, Inc. ("Defendant").

The court denies
the motion because Plaintiff has not furnished the court with any evidence that Plaintiff is entitled to an award of fees and costs. Although Plaintiff's papers reference a buyback agreement, no agreement is attached to the moving papers. Nor does Plaintiff's counsel address the agreement in his declaration. (Rashtian Decl. ¶¶ 1-8.) Because Defendant's opposition does not deny the existence of a settlement agreement, the court's denial of this motion is without prejudice to filing a new motion that properly places a settlement of this action before the court and establishes that Plaintiff is a buyer who has prevailed in this action and is entitled to recover attorney's fees, costs, and

expenses. (Civ. Code, § 1794, subd. (d).)

If

the parties have entered into an agreement to settle the entire case, California Rules of Court, rule 3.1385, subdivision (a)(1) requires that Plaintiff “immediately file written notice of the settlement” Plaintiff is required to file the notice on the mandatory Judicial Council form “Notice of Settlement of Entire Case” (CM-200). The court may order a person, after notice and an opportunity to be heard, to pay reasonable monetary sanctions for failure without good cause to comply with that rule. (Cal. Rules of Ct., rule 2.30(b).) The court expects the parties to comply with the requirements of the California Rules of Court.

ORDER

The court DENIES

plaintiff Benjamin Zuniga’s motion for attorney’s fees, costs, and expenses. The court orders that this ruling is without prejudice to filing a new motion for attorney’s fees, costs, and expenses that properly sets forth a basis to conclude that a party is entitled to recover attorney’s fees, costs, and expenses.

The court orders defendant

Volkswagen Group of America, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Robert B. Broadbelt III

Judge of the Superior Court